

25STCV28189 25STCV28189

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Department: 407

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Case Number: 25STCV28189 Hearing Date: September 24, 2026 Dept: 407

Tentative Ruling

Judge Brock T. Hammond, Department 407

HEARING DATE: September

24, 2026 TRIAL DATE: January

10, 2028

CASE: Deisy Linel

Kavanaugh Pagoda v. SDJJ 454 Properties LLC

CASE NO.: 25STCV28189

MOTION

FOR LEAVE TO FILE FIRST AMENDED COMPLAINT

MOVING PARTY: Plaintiff

Deisy Linel Kavanaugh Pagoda

RESPONDING

PARTY: No

opposition

I. BACKGROUND

On September 25, 2025, Plaintiff, Deisy Linel

Kavanaugh Pagoda, individually and as successor in

interest to McKenzie Evangeline Kavanaugh Pagoda, filed this action against Defendant,

SDJJ 454 Properties LLC, for wrongful death and negligent infliction of emotional distress.

On November 18, 2025, Defendant filed its Answer to the Complaint.

On May 18, 2026, Plaintiff filed this motion for leave to file an amended complaint. According to the motion, Plaintiff seeks to add Wuilliam E. Ventura Garcia, the natural father of decedent, as a plaintiff to the first cause of action for wrongful death.

The motion is unopposed.

II. LEGAL STANDARD

The court may, in its discretion and after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading, including adding or striking out the name of any party, or correcting a mistake in the name of a party, or a mistake in any other respect. (Code Civ. Proc., § 473, subd. (a)(1).) “Public policy dictates that leave to amend be liberally granted.” (Centex Homes v. St. Paul Fire & Marine Ins. Co. (2015) 237 Cal.App.4th 23, 32.) “Although courts are bound to apply a policy of great liberality in permitting amendments to the complaint at any stage of the proceedings, up to and including trial . . . this policy should be applied only ‘where no prejudice is shown to the adverse party.’” [Citation]. A different result is indicated ‘where inexcusable delay and probable prejudice to the opposing party’ is shown.” (Magpali v. Farmers Group, Inc. (1996) 48 Cal.App.4th 471, 487.)

A motion to amend a pleading must include a copy of the proposed amendment or amended pleading which must be serially numbered to differentiate it from previous pleadings or amendments and must state what allegations in the previous pleading are proposed to be deleted or added, if any, and where, by page, paragraph, and line number, the allegations are located. (Cal. R. Ct., rule 3.1324(a).) The motion shall also be accompanied by a declaration attesting to the effect of the amendment, why the amendment is necessary and proper, when the facts giving rise to the amended allegations were discovered, and why the request for amendment was not made earlier. (Cal.

R. Ct., rule 3.1324(b).)¿¿¿

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In ruling on a motion for leave to amend a pleading, the court does not consider the merits of the proposed amendment, because “the preferable practice would be to permit the amendment and allow the parties to test its legal sufficiency by demurrer, motion for judgment on the pleadings or other appropriate proceedings.”¿ (Kittredge Sports Co. v. Superior Court (1989) 213 Cal.App.3d 1045, 1048.)¿ While the court may deny leave to amend where the proposed amendment is insufficient to state a valid cause of action or defense, such denial is most appropriate where the insufficiency cannot be cured by further amendment—i.e., where the statute of limitations has expired or the insufficiency is established by controlling caselaw. (California Casualty Gen. Ins. Co. v. Superior Court (1985) 173 Cal.App.3d 274, 280-281, disapproved on other grounds in Kransco v. American Empire Surplus Lines Ins. Co. (2000) 23 Cal.4th 390.)¿¿¿

III. DISCUSSION

Plaintiff seeks leave to file the proposed First Amended Complaint to add a plaintiff to the wrongful death claim.

The proposed pleading does not otherwise change the allegations.

Leave to amend is appropriate. The addition of William E. Ventura Garcia as a plaintiff does not alter the material allegations of the complaint nor will Defendant be prejudiced by the amendment. Defendant, having not filed an opposition, does not show otherwise.

IV. CONCLUSION

The unopposed. motion is GRANTED.

Plaintiff is ordered to serve and to file separately the First Amended Complaint with the court within 5 days of this order.

Plaintiffs
to give notice, unless waived.

Dated: September 24,

2026

Brock T. Hammond

Judge of the Superior Court